

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1555

By: Reinhardt of the Senate

and

Pae of the House

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9 An Act relating to Medicaid home- and community-based
10 services; amending 10 O.S. 2021, Section 1408, which
11 relates to definitions; modifying certain definition;
12 updating statutory language and references; and
13 providing an effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 10 O.S. 2021, Section 1408, is
16 amended to read as follows:

17 Section 1408. A. "Individual with intellectual disability" as
18 used in ~~Sections~~ Section 1406 ~~through 1424 et seq.~~ of this title
19 means a person who ~~has significantly subaverage functioning,~~
20 ~~intelligence quotient of less than seventy (70), manifested before~~
21 ~~the age of eighteen (18) and existing concurrently with related~~
22 ~~limitations in two or more of the following applicable adaptive~~
23 ~~skill areas:~~

24 ~~1. Communication;~~

1 ~~2. Self care;~~

2 ~~3. Home living;~~

3 ~~4. Social skills;~~

4 ~~5. Use of community resources;~~

5 ~~6. Self direction;~~

6 ~~7. Health and safety;~~

7 ~~8. Functional academics;~~

8 ~~9. Leisure; and~~

9 ~~10. Work~~ meets the criteria for intellectual disorder as listed

10 in the Social Security Administration Listing of Impairments for
11 disability evaluation, 20 C.F.R., Part 404, Subpart P.

12 B. "Resident" as used in ~~Sections~~ Section 1406 ~~through 1424~~ et
13 seq. of this title shall mean a person admitted to and in residence
14 in any of the institutions named in Section 1406 of this title, or
15 on a vacation or extended vacation status from such institution.

16 C. "Developmental disability" as used in ~~Sections~~ Section 1406
17 ~~through 1424~~ et seq. of this title means a severe, chronic
18 disability of a person which:

19 1. Is attributable to a mental or physical impairment or
20 combination of mental and physical impairments, such as intellectual
21 developmental disorder, cerebral palsy, or autism;

22 2. Is manifested before the person attains twenty-two (22)
23 years of age;

24 3. Is likely to continue indefinitely;

1 4. Results in substantial functional limitations in three or
2 more of the following areas of major life activity:

- 3 a. self-care,
- 4 b. receptive and expressive language,
- 5 c. learning,
- 6 d. mobility,
- 7 e. self-direction,
- 8 f. capacity for independent living, and
- 9 g. economic self-sufficiency; and

10 5. Reflects the person's need for a combination and sequence of
11 special, interdisciplinary, or generic care, treatment, or other
12 services which are of lifelong or extended duration and are
13 individually planned and coordinated. The term developmental
14 disability shall not include mentally ~~ill~~ incompetent persons, as
15 those persons are defined by Section 1-103 of Title 43A of the
16 Oklahoma Statutes, whose sole disability is mental illness as
17 defined by Section 1-103 of Title 43A of the Oklahoma Statutes.

18 D. Nothing in subsection C of this section shall be construed
19 to render persons who are receiving services upon September 1, 1991,
20 through programs and services for individuals with intellectual
21 disabilities offered by the Department of Human Services as
22 ineligible for such services. The Department of Human Services may
23 provide, within the limitations of funds and other resources
24 available for such purpose, programs and services for persons with

1 developmental disabilities who are not presently served by the
2 Department of Human Services.

3 SECTION 2. This act shall become effective November 1, 2026.

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5 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
6 OVERSIGHT, dated 04/16/2026 - DO PASS.
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